
Statement of the case.

ruled the motion, because the assignees could have no interest in a suit for an infringement committed before their right accrued.*

Attempt is made to distinguish the case at bar from the rule established in those cases, but, in the view of this court, without success.

JUDGMENT REVERSED. NEW VENIRE ORDERED.

RANDALL v. BRIGHAM.

1. An action for damages does not lie against a judge of a court of general jurisdiction, for removing, whilst holding court, an attorney-at-law, from the bar, for malpractice and misconduct in his office, the court being empowered by statute to remove attorneys for "any deceit, malpractice, or other gross misconduct;" and having heard the attorney removed, in explanation of his conduct in the transaction which was the subject of complaint. And such action will not lie against the judge, even if the court, in making the removal, exceeds its jurisdiction, unless perhaps in the case where the act is done maliciously or corruptly.
2. All judicial officers are exempt from liability, in a civil action, for their judicial acts, done within their jurisdiction; and judges of superior or general authority, are exempt from such liability, even when their judicial acts are in excess of their jurisdiction, unless perhaps where the acts in excess of their jurisdiction are done maliciously or corruptly.
3. Formal allegations, making specific charges of malpractice or unprofessional conduct, are not essential as a foundation for proceedings against attorneys. All that is requisite to their validity, is that, when not taken for matters occurring in open court, in the presence of the judges, notice should be given to the attorney of the charges made, and opportunity afforded him for explanation and defence. The manner in which the proceeding shall be conducted, so that it be without oppression or injustice, is a matter of judicial regulation.
4. The construction given to a provision of the constitution of a State, by the highest court of that State, not called in question by any conflicting decision of that court, is conclusive upon this court.

ERROR to the Circuit Court for the District of Massachusetts.

This action was brought by the plaintiff, who was formerly an attorney and counsellor-at-law in Massachusetts,

* Kilborn v. Rewee, 8 Gray, 415; 1 Hilliard on T. 521; Eades v. Harris, 1 Younge & Collier, 230.